

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 9, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. ABSENT: Mr. Allen, Ms. Broyles and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Cook, and pursuant to support received by Mr. Brown and Mr. Shanor, Agenda Item #25(j) was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on May 27, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Shanor moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land situated in a portion of the Northeast Quarter of the Northwest Quarter of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Del-Van Storage Park Annexation (located at 5311 Dell Range Boulevard at the southwest corner of the intersection of Gysel Place and Dell Range Boulevard). Jim Flesher, Planning Services Department, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Casey Palma, Steil Surveying Services, agent for the applicant, stated the proposed property meets the required conditions for annexation and the parcel is tied to a larger development project area. He advised a request for postponement may be made at the upcoming Public Services Committee meeting as they are in the process of scheduling neighborhood meetings to discuss the development project. Upon inquiry, it was advised the property owner requested annexation of the parcel. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the

hearing.

Mayor Kaysen opened a public hearing for the purpose of receiving input and comments on the proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2015. Lois Huff, City Treasurer, noted the budget has been presented and discussed at a Council work session as well as prior Council and Committee of the Whole meetings. She stated the general fund budget proposed is in the amount of \$47,229,809.00 with a total proposed budget amount of \$146,200,582.00, which includes the Board of Public Utilities (BOPU) water and sewer budgets. Ms. Huff clarified the budget includes provisions for a 2.25% salary increase for non-uniformed and sworn police officers, an additional contribution of .75% to the Wyoming retirement system for eligible employees and a 6.25% increase for health insurance coverage. She advised two additional changes in the budget this year are the Solid Waste fund and allocation of charges to departments for Fleet Maintenance services. Ed Strader questioned the "indexing" and rate classes affiliated with BOPU's fee structure and commented on BOPU's expenses (bonding) and fixed indebtedness. There being no further comments or discussion and purpose of the public hearing having been met, Mayor Kaysen closed the hearing.

ORDINANCE - Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Ed Strader expressed opposition to how fees are assessed for multi-family residential units vs. single family residential dwellings, referencing a hand-out he provided during his comments, and spoke in favor of equalizing the rates. Mr. Strader also stated his concerns with "indexing" water rates to the Consumer Price Index. Lea Bain requested clarification regarding the rates for single family dwellings vs. multi-family units. Tim Wilson, BOPU Director, provided information on the rate structure, advising the structure treats multi-family and single family dwellings equitably, explained the rate design and reviewed fee examples based on the proposed rate. Reporting for Finance Committee, Mr. Brown advised there was no recommendation on the item from Committee. Mr. Brown moved to approve on third and final reading, seconded by Dr. Rinne. Mr. Shanor moved to amend by omitting the proposed increase amount to tap and system development fees as evidenced in Exhibit C affiliated with the ordinance, seconded by Mr. Cook. Discussion followed on receipt of information from the development fee study prior to approving the fee increase, proposed 3.4% increase based on the index, and intent of the proposed amendment, which is to keep tap and system development fees at the current rate. Upon inquiry, Dan White, City Attorney, stated his understanding of the motion to amend, which is to eliminate the proposed increase to tap and system development fees only with no effect on the current rate. Upon inquiry regarding how much the increase in fees would generate, Mr. Wilson advised the tap and system development fees increase as proposed in Exhibit C would be effective Jan. 1, 2015, if approved, and would generate approximately \$36,500.00 for water and \$16,300.00 for sewer funds. Motion to amend carried. Voting "yes" -- all members of the governing body present. Discussion followed on a meeting held at the library last year and information that was provided concerning BOPU's fee structure. Randy Hays, BOPU, advised he would provide information from the meeting to members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Luna voting "no". (#4025)

ORDINANCE - Amending Sections 2.76.020(A) and (B), Members-Terms-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present. (#4026)

ORDINANCE - Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation all for the Fiscal Year beginning July 1, 2014 and ending June 30, 2015. Reporting for Committee of the Whole, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body present. (#4027)

ORDINANCE - Amending the City of Cheyenne's Solid Waste fee schedule established by Ordinance No. 4013. Mr. Brown moved to approve on third and final reading, seconded by Dr. Rinne. Mr. Brown moved to postpone to June 23, 2014, seconded by Mr. Cook. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending various sections of the Cheyenne Unified Development Code (UDC), to allow Service Uses, Animal Care - Hospital/Clinic in the CBD Central Business District after conditional discretionary review. Mr. Shanor moved to approve on second reading, seconded by Mr. Luna. Upon inquiry regarding how far a facility would need to be from a residential area, Brandon Cammarata, Planning and Development Director, advised the ordinance applies to the Central Business District, which has a mix of uses including both commercial and residential. He indicated conditional use approval will provide the process for reviewing a facility and its proposed use relevant to the ordinance. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending Ordinance No. 3980 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne. Mr. Brown moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending Ordinance No. 3981 defining the terms and conditions of employment for sworn officers of the City of Cheyenne Police Department. Mr. Brown moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land situated in a portion of the Northeast Quarter of the Northwest Quarter of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Del-Van Storage Park Annexation (located at 5311 Dell Range Blvd. at the southwest corner of the intersection of Gysel Place and Dell Range Blvd.) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MU Mixed Use (County), MUB Mixed-Use Business Emphasis, and MR-1 Medium Density Residential-Established to MUE Mixed-Use Employment Emphasis for Del-Van Storage Park, being a replat of all of Goodwater Addition, Goodwater Drive, and Water Blue Lane and a portion of the Northeast Quarter of the Northwest Quarter of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of and adjacent to Dell Range Blvd., east of and adjacent to Van Buren Ave.) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the submission of a Business Ready Community, Community Readiness Grant Application, to the Wyoming Business Council on behalf of the Governing Body of the City of Cheyenne for the Christensen Railroad Overpass and Corridor Project. Motion (per Consent Agenda) carried. (#5595)

[CA] RESOLUTION - Approving the Application of the City of Cheyenne for Transportation Alternatives Program (TAP) Funding for the Construction of the Saddle Ridge Greenway Connector. Motion (per Consent Agenda) carried. (#5596)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for The Pointe, Eighth Filing, a replat of Lot 14, Block 8, The Pointe, Fifth Filing, Cheyenne, Wyoming (located west of and adjacent to Powderhouse Road, between Dorothy Lane and Michael Evans Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Cahill Park Addition, Filing No. 2, a replat of Lot 2, Block 1, Cahill Park Addition, Cheyenne, Wyoming (located at the southeast corner of the intersection of Windmill Road and Dell Range Boulevard) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Westland Holdings Addition, a replat of portions of Lots 4, 5, 6, and 7, Block 210, Original City, Cheyenne, Wyoming (located at the northeast corner of the intersection of W. 22nd Street and Snyder Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Approving the budget of the Laramie County Community Juvenile Services Joint Powers Board for the Fiscal Year beginning July 1, 2014 and ending June 30, 2015 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has approved City Projects to be submitted to the State Loan and Investment Board for 2015-2016 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County

Community College, City/County Health Department, and an area of Laramie County adjacent to the City. Motion (per Consent Agenda) carried (revenue to City \$77,500.00). (#6180)

[CA] Agreement between the City of Cheyenne and Stride Learning Center to provide cooperative transit services (revenue to City). Motion (per Consent Agenda) carried (revenue to City \$56,735.00). (#6181)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the City of Cody, Wyoming, Police Department, for law Enforcement Extraterritorial Assistance. Motion (per Consent Agenda) carried. (#6182)

[CA] Department of Air Force License to the City of Cheyenne, Wyoming, to use property located on F.E. Warren Air Force Base, Wyoming, for a parking lot for patrons attending the 2014 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6183)

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc., for United States Department of the Air Force owned land located at F.E. Warren Air Force Base to be used and operated as a parking lot for public transportation services during the 2014 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6184)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Frontier Days, Inc., and Laramie County School District No. 1 for buses owned by the Laramie County School District No. 1 to be used and operated for public transportation services during the 2014 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6185)

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc., for buses owned by the Laramie County School District No. 1 to be used and operated for public transportation services during the 2014 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6186)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of City-owned land and buildings for parking, camping and other activities during the 2014 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6187)

Recycling Services Agreement with WM Recycle America, L.L.C., for baled residential single stream recyclables and baled old corrugated containers. Mr. Brown moved to approve, seconded by Ms. Williams. Motion carried. Voting "yes"-- all members of the governing body present with the exception of Mr. Luna voting "no". (#6188)

Contract between the City of Cheyenne and WINhealth Partners for employee Wellness Coaching Services for the term of July 1, 2014 through June 30, 2015. Rich Wiederspahn, Human Resources Director, provided information on the effects of the program since its implementation; tracking of data for the different risk levels (high, medium and low), and spoke in support of continuing the Wellness Program for participating employees. He reviewed the City's health insurance coverage plans available as options to eligible employees and difference in rates to

employees in the program vs. those who choose not to be in the program, and elements of the program that participants must meet, such as an annual health risk assessment, blood draw and wellness coaching sessions. He advised WINhealth is open to suggestions and ideas on how to improve the program. Mr. Brown moved to approve, seconded by Dr. Rinne. Upon inquiry, Mr. Wiederspahn provided information on how employees have the choice to opt out of the program and the effect of same on the premium amount that would be assessed to the employee (i.e. 25% vs. 12.5% contribution rate), noting the Wellness Program is an incentive to lower the premium amount paid by a participating employee. Discussion included financial hardship to employees and their families if they opt out of the program and the appearance of penalizing the employee; that no incentives are offered to those employees who reduce their risk level; effect of the program based on percentage of employee participation; cost of the program; potential for increased premiums if the program was discontinued; personal lifestyle choices, and suggestion that the program elements and benefits should be further reviewed. Upon inquiry, Lois Huff, City Treasurer, advised the higher premium amounts paid by employees who are not in the program go into the general fund to help pay costs. Motion failed. Voting "yes" -- Dr. Rinne and Mayor Kaysen. Voting "no" -- Mr. Brown, Mr. Cook, Mr. Luna, Mr. Shanor and Ms. Williams.

[CA] Use Agreement between the City of Cheyenne and Advanced Communications Technology to permit limited use of the public right-of-way for the installation of fiber optics, and setting a fee (revenue to City). Motion (per Consent Agenda) carried. (#6189)

[CA] Contract between the City of Cheyenne and Deep Green Energy, LLC, for replacement of light fixtures in the George Cox and Jack R. Spiker parking facilities (Impact Assistance funds). Motion (per Consent Agenda) carried (amount not to exceed \$241,237.00). (#6190)

[CA] Contract between the City of Cheyenne and WINhealth Partners for Employee Risk Sharing Program for the term of July 1, 2014 through June 30, 2015 -- referred to Finance Committee.

[CA] Purchase Agreement between the City of Cheyenne and Hi Country Wire and Telephone, Ltd., for the purchase, installation and training for ShoreTel Voice Over Internet Protocol (VOIP) Telephone System (State Special Distribution funds) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for the 2014-2015 Concert Season -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for Youth Education Concerts -- referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and the Children's Museum of Cheyenne for the lease of City-owned property located at 206 West Lincolnway, Cheyenne, Wyoming -- referred to Finance Committee.

[CA] Letter of Agreement between the Wyoming Main Street Program, the City of Cheyenne, and Cheyenne Downtown Development Authority, to promote the revitalization of the designated downtown Main Street district of the City of Cheyenne -- referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 5792 Memorandum of Understanding between the City of Cheyenne and the 37th Helicopter Squadron of the United States Air Force for use of the Belvoir Ranch for helicopter training. Motion (per Consent Agenda) carried. (#5792)

Contract Modification No. 1 to Contract No. 6130 between the City of Cheyenne and the Wyoming Department of Transportation for Epoxy Striping (2011-2014 1% Sales Tax). Mr. Brown moved to approve, seconded by Mr. Luna. Mr. Brown moved to amend by substitute, seconded by Mr. Luna. Upon inquiry, Rob Geringer, City Engineer, advised he would need to research what warranty or guarantee provisions are included in the contract relative to the striping. He explained the modification is due to bids received by the state coming in higher than anticipated; the state bid process, and that the engineer's estimate is based on materials and work to be performed. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present. (#6130)

[CA] Addendum to Master Group Contract between the City of Cheyenne and WINhealth Partners for City employee health coverage for the term of July 1, 2014 through June 30, 2015. Motion (per Consent Agenda) carried. (#6191)

Addendum to Master Group Contract between the City of Cheyenne and WINhealth Partners for City employee health coverage pertaining to the Transitional Reinsurance Program Assessment Fee. Rich Wiederspahn, Human Resources Director, clarified the fee is required pursuant to the federal Affordable Health Care Act and that the fee is based on the number of health plan participants. Mr. Brown moved to approve, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#6191)

[CA] Consideration of Bid #M-20-14 for a contract between the City of Cheyenne, 1% Construction Division, and JTL Group, Inc. d/b/a Knife River, Cheyenne, Wyoming, for the Fiscal Year 2014 City Overlay Project (2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$2,762,454.80). (#6192)

[CA] Consideration of Bid #R-24-14 for furnishing one new 2014-2015, 3-4.4 cubic yard single axle dump truck for the City of Cheyenne, Street and Alley Division (2011- 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-26-14 for a contract for furnishing and installing Cisco core switches in conjunction with the Voice Over Internet Protocol (VOIP) Telephone System -- referred to Finance Committee.

[CA] Consideration of Bid #R-25-14 for furnishing and installing updates to the licensed microwave data communications link wireless replacements for the City of Cheyenne, Fire and Rescue Department and Traffic Division (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-22-14 for furnishing one to three medium/heavy duty, body on chassis, low floor busses with wheelchair accessibility for the City of Cheyenne, Transit Division (partial Federal funding) -- referred to Finance Committee.

[CA] Consideration of Bid #M-25-14 for a contract between the City of Cheyenne and Becker Arena Products, Inc., for the removal, furnishing and installing of a New Sports Rubberized Flooring system in the City-owned Ice and Events Center (Capital Equipment fund) -- referred to Finance Committee.

[CA] Consideration of Bid #M-26-14 for a contract between the City of Cheyenne, Parks and Recreation Department, and Monument Builders, Inc., for the Airport Golf Shop Grinding Room Addition (2011-2014 1% Sales Tax, Golf Capital Improvement fund) -- referred to Finance Committee.

[CA] Request to approve an additional dispensing room for City of Cheyenne Limited Retail Liquor Licensee AMVETS Post 10, located at 3839 East Lincolnway, Cheyenne Wyoming. Motion (per Consent Agenda) carried.

Announcement was made that two Calcuttas, benefitting Cheyenne area charities, will be held as follows: Saturday, July 26, 2014 beginning at 5:30 p.m. in the Headquarters Tent located in front of the Old West Museum, 4601 North Carey Avenue, Frontier Park, in conjunction with the Championship Bull Riding event, and Sunday, July 20, 2014 beginning at 5:30 p.m. in the Headquarters Tent located in front of the Old West Museum, 4601 North Carey Avenue, Frontier Park, Cheyenne, Wyoming, in conjunction with the 2014 Cheyenne Frontier Days celebration (10% of proceeds to bona fide charities).

Announcement was made of the Appointment of Carole J. Martin, to the Mayor's Council for People with Disabilities, to be confirmed June 23, 2014.

Announcement was made of the Re-Appointments of Carla Thurin, Monique Meese, Mike Sorenson, Gus Lopez, and Rob Dafoe to the Laramie County Juvenile Services Joint Powers Board, to be confirmed June 23, 2014.

Announcement was made of a Public Hearing to be held June 23, 2014 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comments regarding the intent of the City of Cheyenne to designate the use of excess monies from 2011-2014 1% Optional Sales Tax funds for right-of-way maintenance, for the Lake Minnehaha Phase I Project, and for prioritized energy efficiency projects in City-owned facilities.

Under other business, Pete Laybourn submitted a handout, titled Deploy Bucket Brigades for Cheyenne Frontier Days, an element contained in a past Placemaking report, to governing body members and encouraged implementation of its recommendations regarding cleaning and beautification of downtown areas prior to the upcoming Cheyenne Frontier Days event. Mr. Laybourn's comments included the following topics: Downtown alley grease spill, Clean and Safe program, banners and trees. Upon inquiry, Mayor Kaysen advised the Downtown Development Association (DDA) is planning to replace some trees in the downtown area; that the Placemaking plan was adopted as a guideline, containing a number of recommendations, and that implementation is based on funding and resources. Comment was made concerning the condition of a pillar and sidewalk near the DDA's downtown office.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:42 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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